

25LBCV01093 25LBCV01093

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-01

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1. Background

Facts

Plaintiff, Ibrahim Arno filed this action against Defendants, Ocean Breeze Apartments, LLC, Excel Residential Services, Inc., Southern California Gas Company, and Hansa Investments, Inc. for breach of the warranty of habitability, premises liability, IIED, breach of covenant of quiet enjoyment, private nuisance and negligence. The operative complaint is the First Amended Complaint, which Plaintiff filed on 5/12/26.

The majority of the claims in the complaint are made against Plaintiff's landlord, and encompass a wide variety of habitability and other claims. As relevant to today's motion, Plaintiff's third and sixth causes of action are pled against SCGC, and center on SCGC's alleged failure to prevent gas from leaking into Plaintiff's apartment.

2. Motion

for Summary Judgment

a.

5/12/26

Hearing

On 5/12/26, the Court heard SCGC's motion for summary judgment or adjudication.

The Court granted the motion as to Plaintiff's cause of action for IIED. The Court denied the motion as to

the negligence cause of action, finding there were triable issues of material fact concerning both duty and breach.

b. Current
Hearing

On 6/10/26, Defendant filed this motion for summary adjudication, contending it is entitled to judgment as a matter of law on the negligence cause of action because there is no evidence it breached any duty to Plaintiff.

Plaintiff, in opposition to the motion, argues that the relief sought is expressly prohibited by CCP §437c(f)(2), which provides, “A party shall not move for summary judgment based on issues asserted in a prior motion for summary adjudication and denied by the court unless that party establishes, to the satisfaction of the court, newly discovered facts or circumstances or a change of law supporting the issues reasserted in the summary judgment motion.”

Defendant, in reply, contends CCP §437c(4) expressly permits it to bring the motion. §437c(4) does not exist. Defendant intended to cite §437c(a)(4), which provides, “A party shall not bring more than one motion for summary judgment against an adverse party to the action or proceeding. This limitation does not apply to motions for summary adjudication.” Defendant argues that, because Defendant styled this motion as one for summary adjudication instead of summary judgment, the limitation does not apply.

While §437c(f)(2) refers to a motion for summary “judgment” and Defendant styled this as a motion for summary “adjudication,” this motion is really a motion for summary judgment. The sole remaining cause of action against SCGC is for negligence, and thus, if this motion were granted, it would operate as a summary judgment in SCGC’s favor.

As the Rutter Guide on Civil Procedure Before Trial explains:

A summary judgment terminates the action between the parties and leads to an immediate, appealable judgment (¶ 10:384).

Summary adjudication orders do not terminate the action. The balance of the case remains to be tried. The summary adjudication simply eliminates the need to prove or disprove a particular claim or defense when the case comes to trial. After trial, judgment must be awarded “as established by the summary proceeding provided for in this section.” [CCP § 437c(k) (emphasis added)]

A summary adjudication order is not appealable. Nor does an appeal lie where plaintiff dismisses the remaining claims without prejudice in exchange for a waiver of the statute of limitations. Such “artifice” does not create an appealable judgment (see ¶ 10:385).

But an order denying or granting summary adjudication is immediately reviewable, in the court of appeal's discretion, by petition for writ of mandate.

Defendant's motion, as noted above, would completely dispose of the case and result in a final judgment. It is therefore one for summary judgment, not summary adjudication, despite its title.

While Defendant provides evidence with its motion that was not presented in connection with its prior motion, the evidence is not “newly discovered.” The evidence is merely newly obtained, but because the evidence consists entirely of declarations from SCGC's employees, it is, by definition, not newly discovered.

The Court finds the renewed motion is not permitted under §437c(f)(2) and §437c(a)(4), and the motion is summarily denied.

3. Motion for Relief from Jury Trial Waiver

On 5/22/26, Plaintiff filed a motion for relief from jury trial waiver.

Plaintiff was obligated to post jury fees prior to the holding of a CMC, and in no event more than 365 days after filing the case. Plaintiff failed to do so. Plaintiff argues he should be relieved of this failure per CCP §631. Plaintiff notes that he posted the fees upon discovery of the failure to pay the fees.

The Rutter Guide on Civil Procedure

Before Trial, §12:325, et seq., explains that relief from failure to timely pay jury fees is favored, and that inadvertent failure to timely pay fees coupled with a timely motion for waiver must be granted absent prejudice to the opposing party.

Defendant has not opposed the motion, and has therefore not shown prejudice.

The 10/05/26 trial is scheduled as a jury trial, and will remain so scheduled.

Defendant is ordered to give notice.